

Court No. - 40

Case :- WRIT - C No. - 21650 of 2021

Petitioner :- Maa Bhagwati Rice Industries And Another

Respondent :- State Of U.P. And 7 Others

Counsel for Petitioner :- Anil Kumar Mehrotra, Srijan Mehrotra

Counsel for Respondent :- C.S.C., A.S.G.I., Ajay Singh, Madan Mohan Chaurasia

Hon'ble Manoj Misra, J.

Hon'ble Jayant Banerji, J.

The petitioners, who claim to have purchased the assets of a Company in liquidation and are not otherwise bound to pay electricity dues of the company under liquidation, have questioned the validity of Clause 4.3 (iv) of the U.P. Electricity Supply Code, 2005 by which the outstanding dues of an electricity connection provided to a company would be a first charge on the assets of the Company.

The contention of the learned counsel for the petitioner, inter alia, is that such a charge on the property of a company has not been contemplated by any provision of the Electricity Act, 2003 and by way of delegated legislation, unless power is specifically conferred by the Statute, such charge cannot be created, as it would violate provisions of Article 300-A of the Constitution of India.

Matter requires consideration.

Learned Standing Counsel has accepted notice on behalf of respondent no.1; Sri Madan Mohan Chaurasia has accepted notice on behalf of respondent nos. 3 and 4; Sri Ajay Singh has accepted notice on behalf of respondent no.7 and the Additional Solicitor General of India has accepted notice for respondent no.8; and Sri Anuj Singh has put in appearance for respondent nos. 5 and 6.

They pray for and are allowed three weeks time to file counter affidavit. One week thereafter is allowed for filing rejoinder affidavit.

List this matter on 27.10.2021.

As vires of a provision of U.P. Electricity Supply Code has been questioned, notice of this petition be also served upon the Advocate General of the State of U.P.

Order Date :- 24.9.2021

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Court No. - 46

Case :- WRIT - C No. - 21650 of 2021

Petitioner :- Maa Bhagwati Rice Industries And Another

Respondent :- State Of U.P. And 7 Others

Counsel for Petitioner :- Anil Kumar Mehrotra, Srijan Mehrotra

Counsel for Respondent :- C.S.C., A.S.G.I., Ajay Singh, Anuj Kumar, Madan Mohan Chaurasisa, Sudarshan Singh

Hon'ble Manoj Misra, J.

Hon'ble Jayant Banerji, J.

Order on Civil Misc. Modification Application No.2 of 2021

This application seeks certain directions and has been filed as a modification application of our order dated 24.09.2021 passed in Writ-C No.21650 of 2021.

As, by our order dated 24.08.2021, after briefly noticing the issues involved, we had called for a counter affidavit from the respondents and had fixed a date, it would be appropriate that this application be listed before the regular Bench dealing with such jurisdiction.

Let this application be listed before the appropriate Bench dealing with Writ-C jurisdiction.

Order Date :- 17.11.2021

Zafar

Court No. - 39

Case :- WRIT - C No. - 21650 of 2021

Petitioner :- Maa Bhagwati Rice Industries And Another

Respondent :- State Of U.P. And 7 Others

Counsel for Petitioner :- Anil Kumar Mehrotra, Srijan Mehrotra

Counsel for Respondent :- C.S.C., A.S.G.I., Ajay Singh, Anuj Kumar, Madan Mohan Chaurasisa, Sudarshan Singh

Hon'ble Siddhartha Varma, J.

Hon'ble Om Prakash Tripathi, J.

Civil Misc. Modification Application No.2 of 2021:

When the petitioners had purchased the assets of respondent no.6 when it was under liquidation, it had become the owner of the property. However, the electricity connection was not being provided to the petitioner on account of the fact that there were certain dues which were not being paid by the respondent no.6. The petitioner has, today, submitted that since the vires of Clause 4.3(iv) of the U.P. Electricity Supply Code, 2005 had been challenged, the petitioners may lose their money if the provisions of Clause 4.3(iv) are struck down. Learned counsel, therefore, submits that the petitioners may be permitted to furnish a bank guarantee.

Learned counsel appearing for the Electricity Department may take instructions as to whether bank guarantee would suffice.

List on 7.12.2021 in the additional cause list.

Order Date :- 3.12.2021

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(Siddhartha Varma, J.)

(Om Prakash Tripathi, J.)

Court No. - 39

Case :- WRIT - C No. - 21650 of 2021

Petitioner :- Maa Bhagwati Rice Industries And Another

Respondent :- State Of U.P. And 7 Others

Counsel for Petitioner :- Anil Kumar Mehrotra, Srijan Mehrotra

Counsel for Respondent :- C.S.C., A.S.G.I., Ajay Singh, Anuj Kumar, Madan Mohan Chaurasisa, Sudarshan Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Om Prakash Tripathi, J.

Learned counsel for the respondents pray for and are granted one week further time to file counter affidavit.

List on 15.12.2021.

Order Date :- 7.12.2021

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(Om Prakash Tripathi, J.) (Manoj Kumar Gupta, J.)

Court No. - 29

Case :- WRIT - C No. - 21650 of 2021

Petitioner :- Maa Bhagwati Rice Industries And Another

Respondent :- State Of U.P. And 7 Others

Counsel for Petitioner :- Anil Kumar Mehrotra, Srijan Mehrotra

Counsel for Respondent :- C.S.C., A.S.G.I., Ajay Singh, Anuj Kumar, Madan Mohan Chaurasia, Sudarshan Singh

Hon'ble Pritinker Diwaker, J.

Hon'ble Ashutosh Srivastava, J.

List this case in the second week of January, 2022.

Order Date :- 15.12.2021

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Court No. - 39

Case :- WRIT - C No. - 21650 of 2021

Petitioner :- Maa Bhagwati Rice Industries And Another

Respondent :- State Of U.P. And 7 Others

Counsel for Petitioner :- Anil Kumar Mehrotra, Srijan Mehrotra

Counsel for Respondent :- C.S.C., A.S.G.I., Ajay Singh, Anuj Kumar, Madan Mohan Chaurasia, Sudarshan Singh

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Vikram D. Chauhan, J.

Put up on 09.02.2022.

Order Date :- 10.1.2022

RKM

Court No. - 21

Case :- WRIT - C No. - 21650 of 2021

Petitioner :- Maa Bhagwati Rice Industries And Another

Respondent :- State Of U.P. And 7 Others

Counsel for Petitioner :- Anil Kumar Mehrotra, Srijan Mehrotra

Counsel for Respondent :- C.S.C., A.S.G.I., Ajay Singh, Anuj Kumar, Madan Mohan Chaurasia, Sudarshan Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Ram Manohar Narayan Mishra, J.

Matter relates to grant of Electricity Connection.

List the instant matter before appropriate Bench on 21.9.2022.

(R.M.N. Mishra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 26.8.2022

Jaideep/-